Ordinance 9: The White Text Prohibition in New Legislation Ordinance

Be it ordained by the Town Council of Whimbishville, that:

Section 1. Purpose

The purpose of this Ordinance is to preserve transparency, accessibility, and integrity in the Town's legislative process by prohibiting the use of hidden or unreadable text—commonly known as "white text"—in newly introduced or adopted legislation and related legislative documents.

Section 2. Definitions

For the purposes of this Ordinance:

1. **"White Text"** means any text or formatting used to conceal words or content from ordinary reading, including but not limited to:
    - Text colored the same as, or substantially similar to, the background color (e.g., white text on white background).
    - Text set to transparency, near-transparency, or otherwise rendered effectively invisible.
    - Text sized, spaced, or positioned to evade ordinary reading (e.g., 1-pt font, extreme negative spacing, text placed off-page).
    - Hidden text features (e.g., "hidden" formatting, concealed layers, or metadata-only content intended to function as text).

2. **"Legislative Document"** means the text of the legislation itself, including exhibits, attachments, preambles, explanatory statements, fiscal notes, and any official versions submitted to the Clerk.

3. **"Clerk"** means the Town Clerk or designated legislative administrator responsible for receiving, formatting, and publishing legislative documents.

Section 3. Prohibition

A. **No New Legislation** shall contain White Text.
B. **No New Legislative Document** submitted for consideration, publication, or vote shall

contain White Text.
C. Any attempt to include White Text in New Legislation is deemed a violation of this Ordinance regardless of intent.

Section 4. Screening and Certification

A. The Clerk shall perform a formatting review of all New Legislation prior to first reading or publication.
B. The submitting sponsor (or drafter) shall include a statement at submission:

> "I certify that this document contains no White Text or concealed text as defined by Ordinance No. ___."

C. If White Text is detected, the Clerk shall return the document to the sponsor as **noncompliant** and it shall not be placed on an agenda until corrected.

Section 5. Remedy for Violations

A. If White Text is discovered **before adoption**, the legislation is automatically paused and must be resubmitted in compliant form; all timelines reset unless the Council votes otherwise.
B. If White Text is discovered **after adoption**, the Council shall:

1. Publish a corrected clean version within 48 hours (or next meeting day), and

2. Hold an expedited corrective vote to re-affirm the legislation in its compliant form.

Section 6. Penalties

A. **First Violation:** Written warning and mandatory resubmission.
B. **Second Violation within 7 days:** Sponsor loses voting privileges for 1 month.
C. **Third Violation within 20 days:** Council may impose a censure vote and/or refer the matter to the Rules Committee (or Ethics Committee) for further action.

(In Sim Civis terms: escalating consequences without being overly punitive.)

Section 7. Exceptions

This Ordinance does **not** prohibit:

- Standard formatting for accessibility (e.g., high-contrast themes, screen-reader tags) **so long as the content remains visible and readable** in the official published version.

Section 8. Severability

If any provision of this Ordinance is found invalid, the remaining provisions shall remain in full force and effect. Unless it has already been passed, and put into effect before the passing of this ordinance. If it was already passed, then it will continue to be in effect, and be an exception to this legislation.

Section 9. Effective Date

This Ordinance shall take effect immediately upon passage and shall apply to all New Legislation introduced on or after that date.